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Tentative Ruling

Re: ***Ramirez v. Creative Alternatives School et al.***
Superior Court Case No. 25CECG05129

Hearing Date: September 23, 2026 (Dept. 502)

Motion: Defendants' Demurrer to the First Amended Complaint and
Defendants' Motion to Strike

Tentative Ruling:

To grant defendants Creative Alternatives School and Justin Cuaya-Beltrans' motion to strike the First Amended Complaint without leave to amend.

To find the demurrer to the First Amended Complaint moot.

Defendants are directed to file a motion to dismiss.

Explanation:

Meriah Ramirez has filed a complaint in propria persona on behalf of herself and minor S.A. While the Court did sign orders appointing her as the Guardian Ad Litem for the minor on December 4, 2025, a non-attorney cannot act in propria persona to represent minors, even where that person has been appointed as their Guardian Ad Litem. (Bus. & Prof. Code, § 6125; *J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 965-968.) As such, while Meriah Ramirez may represent herself, counsel must be obtained for the minor child.

The causes of action in the First Amended Complaint are only on behalf of minor S.A. Thus, the court strikes the First Amended Complaint in its entirety.

The demurrer to the First Amended Complaint is thus rendered moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 9-22-26.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Williams v. Welbe Health Sequoia Pace et al.***
Superior Court Case No. 25CECG01900

Hearing Date: September 23, 2026 (Dept. 502)

Motion: By Defendant Hongshik Han, M.D. for Summary Judgment

Tentative Ruling:

To grant Defendant Hongshik Han, M.D.'s motion for summary judgment. Defendant Hongshik Han, M.D. is directed to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

On March 20, 2026, defendant Hongshik Han, M.D. ("Defendant") filed a motion for summary judgment ("MSJ"). Plaintiff Tia Williams' ("Plaintiff") sole cause of action within the complaint is for medical malpractice.

Law Governing Summary Judgment

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." A defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*).) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

Objections

Plaintiff's objections one through seven are overruled. Defendant's objection to Plaintiff's declaration is overruled. Defendant's objection to Plaintiff's sur-reply is sustained and will not be considered by the court. (Code Civ. Proc., § 437c, sub. (b).)

Analysis of Defendant's Initial Burden

Defendant has the burden of showing that Plaintiff cannot prove one of the elements of medical malpractice. The elements to prove medical malpractice are "(1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or

damage." (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) Unless falling within the limited common knowledge exception, expert testimony is required to determine whether a defendant doctor breached the standard of care. (*Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 1001.) The common knowledge exception is limited to situations where the issue is obvious on its face, such as an X-ray revealing a scalpel left in a patient following surgery. (*Ibid.*) "Otherwise, 'expert evidence is conclusive and cannot be disregarded. [Citations.]'" (*Ibid.*, quoting *Starr v. Mooslin* (1971) 14 Cal.App.3d 988, 999.)

Defendant presents that Defendant is a competent expert that, based on his knowledge, education, training, professional experience, and review of the materials in this case, can give a qualified expert opinion on the standard of care and the proximate cause of Plaintiff's injury. (UMF Nos. 2 & 4.) Defendant, as an expert, determined that Defendant complied with the standard of care in his treatment and care of Plaintiff. (UMF No. 3.) Defendant also determined, as an expert, that Defendant was not the proximate cause of the injuries claimed by Plaintiff. (UMF No. 5.) Defendant has met their initial burden. The burden now shifts to Plaintiff to prove a triable issue of material fact exists.

Analysis of Plaintiff's Response

Plaintiff attempts to dispute Defendant by pointing to the injury Plaintiff suffered after surgery by Defendant and that the surgery was done without Plaintiff's consent. (Williams Decl., ¶¶ 2-3.) However, Plaintiff provides no expert evidence to dispute Defendant's expert evidence. Without expert evidence, Plaintiff cannot demonstrate there is a triable issue of material fact.

In the alternative, Plaintiff requests a continuance under Code of Civil Procedure section 437c, subdivision (h). Plaintiff cites three reasons for a potential continuance: a ruling on a then pending motion to compel, completion of discovery, and acquisition of expert testimony. On April 29, 2026, the motion to compel was denied. Therefore, the motion to compel cannot be the basis for a continuance.

In order for a motion for continuance under Code of Civil Procedure section 437c, subdivision (h) to be granted, a party must show "(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts." (*Frazee v. Seely* (2002) 95 Cal.App.4th 627, 633.) For Plaintiff's argument about incomplete discovery, she fails to state what specific facts are to be obtained from further discovery that are essential to opposing the motion, why there is reason to believe such facts may exist, and why additional time is needed to obtain these specific facts. Plaintiff's request for an expert fails to state why additional time is needed to obtain one. Plaintiff filed the complaint on April 28, 2025. Plaintiff has had over a year since the filing of the case to retain and consult with an expert. No explanation is provided why Plaintiff failed to do so. Plaintiff has failed to provide a valid basis for continuance under Code of Civil Procedure section 437, subdivision (h). Accordingly, Defendant's motion for summary judgment is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

